

# R.Ponmudi vs S.Seevaga Vazhuthi on 11 August, 2022

**Author: G.Jayachandran**

**Bench: G.Jayachandran**

Crl.R.C.N

IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED: 11.08.2022

CORAM

THE HON'BLE Dr.JUSTICE G.JAYACHANDRAN

Crl.R.C.No.1475 of 2017

R.Ponmudi,  
W/o.Renganathan.

... Pe

-Vs.-

S.Seevaga Vazhuthi,  
S/o.Sanjeevirayar

.. Res

Criminal Revision Petition filed under Sections 397 and 398 of the Code of Criminal Procedure to set aside the order dated 12.10.2017 in Criminal Appeal No.05 of 2017 of the II Additional District and Sessions Judge, Chidambaram against the order made in C.C.No.102 of 2008 on the file of the Judicial Magistrate I, Chidambaram by allowing this petition.

For Petitioner : Mr.A.Tamil Rajan.

For Respondent : Mr.T.Balaji

<https://www.mhc.tn.gov.in/judis>

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Crl.

ORDER

This revision petition has been filed against the concurrent findings of the Courts below convicting the petitioner herein for the offences under section 138 of the Negotiable Instruments Act, 1881.

2. The case of the complainant is that on 20.11.2008, the petitioner herein borrowed a sum of Rs.2,50,000/- (Rupees Two Lakhs Fifty Thousand Only) as loan to meet her family expenses and petty loans. To discharge said debt, she gave a check dated 31.05.2008 and when the same was presented for collection, it was bounced with an endorsement "funds insufficient". Therefore, after passing a statutory notice, the private complaint has been filed before the trial Court.

3. The complainant was examined as PW1, the Bank Manager was examined as PW2 and four exhibits were marked whereas, on the defence side, the accused and one Jayalakshmi were examined as DW1 and DW2. The trial Court rejected the plea of the accused that the check was not issued for discharge of any Debt. The plea of non-compliance of mandatory requirement, causing notice to the accused was also declined, <https://www.mhc.tn.gov.in/judis> in the light of the Ex.P4 which is returned notice cover with endorsement "refused".

4. On appeal, the Lower Appellate Court, after re-appreciating the evidence confirmed the order of the trial Court. Since the accused has not reverted the presumption, the very same defence has been taken in the present revision.

5. However there is no material to infer that the petitioner has no brevity of contract with the complainant. The ocular evidence of the DW1 and DW2 does not dislodge the documentary evidence which is marked as Ex.P1 to Ex.P4 and also the ocular evidence of PW1.

6. Accordingly, this revision petition is dismissed as devoid of merits.

11.08.2022 Speaking/Non-speaking order Index: Yes/No Internet : Yes/No nsa  
<https://www.mhc.tn.gov.in/judis> Dr.G.JAYACHANDRAN.J., nsa To

1.The II Additional District and Sessions Judge, Chidambaram

2.The Judicial Magistrate I, Chidambaram.

3.The Public Prosecutor, High Court of Madras, Chennai.

11.08.2022 <https://www.mhc.tn.gov.in/judis>